

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X INDEX NO.:
DESMOND HUGHLETT,

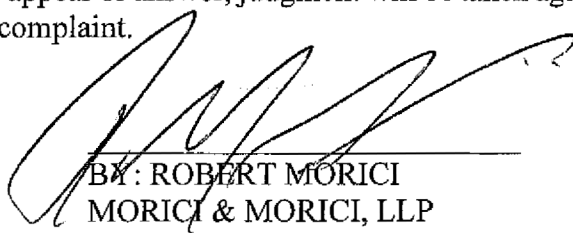
Plaintiff,

-against-

SUMMONSThe basis venue is the
place of occurrence:
179 East 100th Street,
New York, NY 10029CITY OF NEW YORK, Police Officer MICHAEL
COMPARATO of the 23rd Precinct Shield No. 15787,
and Police Officer "JOHN DOE",Defendants.
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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
January 17, 2022
BY: ROBERT MORICI
MORICI & MORICI, LLP
Attorneys for Plaintiff
DESMOND HUGHLETT
1399 Franklin Avenue, Suite 202
Garden City, New York 11530
516-873-1902

Defendants' Addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007MICHAEL COMPARATO
C/O NYPD 23RD PRECINCT
162 E 102nd Street
New York, New York 10029

JOHN DOE
C/O NYPD 23rd PRECINCT
162 E 102nd Street
New York, New York 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DESMOND HUGHLETT,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

CITY OF NEW YORK, Police Officer MICHAEL
COMPARATO of the 23rd Precinct Shield No. 15787,
and Police Officer "JOHN DOE",

Defendants.
-----X

Plaintiff DESMOND HUGHLETT by his attorneys, MORICI & MORICI, LLP,
complaining of the Defendants, respectfully alleges:

1. That at all times hereinafter mentioned, Plaintiff DESMOND HUGHLETT, is a resident of the State of New York, County of New York. (Currently incarcerated in Green County Correctional Facility)
2. That at all times hereinafter mentioned, defendant CITY OF NEW YORK, was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant CITY OF NEW YORK, maintained and controlled an agency called the New York City Police Department ("NYPD").
4. That at all times hereinafter mentioned, Defendant Police Officer MICHAEL COMPARATO was a police officer assigned to the 23rd Precinct, Shield No. 15787, New York County and employed by Defendant CITY OF NEW YORK.
5. That at all times hereinafter mentioned, Defendant Police Officer "JOHN DOE" was a police officer assigned to the 23rd Precinct, Shield No. Unknown, New York County and employed by Defendant CITY OF NEW YORK.

6. That on February 11, 2021, within the statutorily obligated time, Plaintiff DESMOND HUGHLETT served and filed his Notice of Claim with the Office of the New York City Comptroller.

7. Plaintiff's examination pursuant to General Municipal Law § 50-h occurred on June 1, 2021. (A copy of Plaintiff's 50-h transcript is annexed hereto as **Exhibit 1**).

8. That at least thirty (30) days have elapsed since the demand or claim upon defendant CITY OF NEW YORK and no settlement has been recorded with defendant CITY OF NEW YORK.

9. That on or about January 27, 2021, at approximately 8:00 p.m., in and around the area of in front of 179 East 100th Street, New York, New York, Plaintiff DESMOND HUGHLETT, a resident of the aforementioned location, was unloading groceries from aa vehicle occupied by his fiancé and three children.

10. At the above referenced date, time and location, Defendant Police Officer MICHAEL COMPARATO, and other New York City Police Officers, acting in an intentional, reckless and negligent manner, approached the vehicle operated by Plaintiff and verbally and physically accosted Plaintiff including but not limited to, slamming him into the vehicle he occupied and onto the concrete; then falsely and wrongfully initiated the detention and subsequent arrest of Plaintiff.

11. Plaintiff DESMOND HUGHLETT was caused to sustain severe damages and serious injuries, including but not limited to, violations of his civil and constitutional rights, unlawful detention, loss of liberty and freedom of movement, physical injuries, conscious pain and suffering, emotional distress, fear, anxiety, indignity, humiliation, embarrassment, extreme

mental stress, loss of enjoyment of life, economic damages, damage to his reputation, and other injuries not yet fully ascertained.

AS AND FOR A FIRST CAUSE OF ACTION
(NEGLIGENCE)

12. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

13. Defendants owed a duty of care to plaintiff to protect him from the unreasonable use of force, wrongful detention and wrongful arrest.

14. Defendants breached their duty of care to Plaintiff DESMOND HUGHLETT by negligently permitting Plaintiff to sustain physical, mental and economic damages due to their actions of unreasonable use of force, wrongful detention and wrongful arrest.

15. Defendant Police Officer MICHAEL COMPARATO was negligent in that he unlawfully used excessive force against Plaintiff, he wrongfully restrained Plaintiff, and he wrongfully arrested Plaintiff.

16. Defendant Police Officer "JOHN DOE" was negligent in that he unlawfully used excessive force against Plaintiff, he wrongfully restrained Plaintiff, and he wrongfully arrested Plaintiff.

17. Defendant CITY OF NEW YORK was negligent in the failure to properly instruct, train and oversee the actions of its employee officers and sergeants with respect to their responsibilities to affect only lawful restraint, detention, arrest and imprisonment of plaintiff.

18. Defendants knew or should have known that the actions taken to restrain, detain, arrest and imprison Plaintiff DESMOND HUGHLETT were in direct violation of Plaintiff's constitutional right to not be unlawfully restrained, detained, arrested and imprisoned.

19. Defendant CITY OF NEW YORK is liable for the actions of Police Officer MICHAEL COMPARATO, and Police Officer "JOHN DOE" as their wrongful conduct occurred while they were acting within the scope of their employment under the theory of *respondeat superior*.

20. These negligent actions of the defendants resulted in Plaintiff DESMOND HUGHLETT sustaining serious physical injuries, emotional injuries and economic damages.

AS AND FOR A SECOND CAUSE OF ACTION
(COMMON LAW EXCESSIVE USE OF FORCE)

21. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

22. By their conduct, Defendants MICHAEL COMPARATO and "JOHN DOE", acting under color of law, deprived Plaintiff DESMOND HUGHLETT of his common law rights to be free from excessive and unreasonable force while they restrained, detained, arrested and imprisoned Plaintiff DESMOND HUGHLETT.

23. As a result of Defendants' unreasonable and excessive use of force, Plaintiff DESMOND HUGHLETT sustained serious personal injuries.

24. At no point did Plaintiff DESMOND HUGHLETT consent to defendants' use of unreasonable and excessive force.

25. Defendant CITY OF NEW YORK had a duty to train, supervise and control its employees to not use unreasonable and excessive force when restraining, detaining, arresting and imprisoning Plaintiff DESMOND HUGHLETT; defendant CITY OF NEW YORK breached that duty by failing to do so.

26. The CITY OF NEW YORK is liable for the actions of Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" as their wrongful conduct

occurred while they were acting within the scope of their employment under the theory of *respondeat superior*.

27. The unreasonable and excessive use of force by the Defendants resulted in Plaintiff DESMOND HUGHLETT sustaining serious physical injuries, emotional injuries and economic damages.

AS AND FOR A THIRD CAUSE OF ACTION
(COMMON LAW FALSE ARREST AND IMPRISONMENT)

28. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

29. By their conduct, Defendants MICHAEL COMPARATO and "JOHN DOE", acting under color of law, and Defendant CITY OF NEW YORK deprived Plaintiff DESMOND HUGHLETT of his common law rights to be free from false arrest and false imprisonment.

30. Defendants intended to restrain and confine Plaintiff.

31. Plaintiff was aware of the restraint and confinement.

32. Plaintiff did not consent to the restraint and confinement.

33. Plaintiff was in fact confined and restrained by defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE".

34. The CITY OF NEW YORK is liable for the actions of Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" as their wrongful conduct occurred while they were acting within the scope of their employment under the theory of *respondeat superior*.

35. The false arrest and imprisonment perpetrated by defendants has resulted in Plaintiff DESMOND HUGHLETT sustaining serious physical injuries, emotional injuries and economic damages.

AS AND FOR A FOURTH CAUSE OF ACTION
(ASSAULT AND BATTERY)

36. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs "1" through "35" herein with the same force and effect as though each were more fully set forth at length herein.

37. Upon information and belief, at all times herein mentioned, defendant CITY OF NEW YORK, hired individuals as employees to act in various capacities for purposes of operating and conducting the daily affairs of the business known as NEW YORK CITY POLICE DEPARTMENT ("NYPD").

38. Upon information and belief, at all times herein mentioned, CITY OF NEW YORK, hired defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" as employees to act on behalf of the NYPD.

39. Upon information and belief, at all times herein mentioned, defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" were acting within the course of their employment with defendant CITY OF NEW YORK.

40. That on or about January 27, 2021, Plaintiff DESMOND HUGHLETT was placed in apprehension of imminent harmful and/or offensive contact by the defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE".

41. That on or about January 27, 2021, Plaintiff DESMOND HUGHLETT was violently contacted by defendant's employees, Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" without cause, provocation, or justification.

42. That on or about January 27, 2021, Plaintiff DESMOND HUGHLETT was

violently contacted by defendant's employees Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" without cause, provocation, or justification while in the course of their employment as employees of defendant CITY OF NEW YORK.

43. That as a result of the foregoing, plaintiff DESMOND HUGHLETT was seriously and permanently injured.

43. That said occurrence and the resulting injuries to Plaintiff DESMOND HUGHLETT were caused solely and wholly by reason of the negligence and carelessness of defendant CITY OF NEW YORK in the ownership, operation, management, maintenance, control, security and supervision of its employees.

44. That as a result of the foregoing, plaintiff DESMOND HUGHLETT was injured solely and wholly as a result of the negligence, carelessness, recklessness and intentional acts of the CITY OF NEW YORK, POLICE OFFICERS "MICHAEL COMPARATO" and "JOHN DOE" and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

45. That by reason of the foregoing, plaintiff DESMOND HUGHLETT has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

AS AND FOR A FIFTH CAUSE OF ACTION
(RESPONDEAT SUPERIOR)

46. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs "1" through "45" above as if set forth fully herein and at length.

47. That defendant employer CITY OF NEW YORK is vicariously liable for

its employees, Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE's" negligent and/or intentional acts of violently contacting plaintiff DESMOND HUGHLETT without cause, provocation or justification while in the course of his employment as those acts were committed within the scope of the employee's employment.

48. That defendant employer CITY OF NEW YORK is vicariously liable for its employee defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE's" negligent and/or intentional acts of violently contacting plaintiff DESMOND HUGHLETT without cause, provocation or justification while in the course of his employment as those acts and the employee's conduct was generally foreseeable and a natural consequence of the employment.

49. That defendant employer CITY OF NEW YORK is vicariously liable for its employees Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE's" negligent and/or intentional acts of violently contacting plaintiff DESMOND HUGHLETT without cause, provocation or justification while in the course of his employment as those acts and the employee's violent conduct could have been reasonably anticipated by defendant employer CITY OF NEW YORK.

50. That defendant employer CITY OF NEW YORK is vicariously liable for its employee defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE's" negligent and/or intentional acts of violently contacting plaintiff DESMOND HUGHLETT without cause, provocation or justification while in the course of his employment as those acts by defendant employees "MICHAEL COMPARATO" and "JOHN DOE" were a minor deviation from work-related activities is still acting within the scope of his employment for the purposes of respondeat superior.

51. That as a result of the foregoing, Plaintiff DESMOND HUGHLETT was seriously and permanently injured.

52. That said occurrence and the resulting injuries to Plaintiff DESMOND HUGHLETT were caused solely and wholly by reason of the negligence and carelessness of defendant CITY OF NEW YORK in the ownership, operation, management, maintenance, control, security and supervision of the employees of the business.

53. That as a result of the foregoing, Plaintiff DESMOND HUGHLETT was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants CITY OF NEW YORK and its employees Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

54. That by reason of the foregoing, Plaintiff DESMOND HUGHLETT has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

AS AND FOR A SIXTH CAUSE OF ACTION
(42 U.S.C. § 1983: FOURTH AND FOURTEENTH AMENDMENTS)

55. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

56. By reason of the foregoing, the negligence, common law uses of excessive force, and common law false arrest and imprisonment, the defendants have deprived Plaintiff DESMOND HUGHLETT of the rights, remedies, privileges and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution to be free from the above referenced actions.

57. Defendants Police Officer MICHAEL COMPARATO and Police Officer "JOHN DOE" acted under pretense and color of state law and in their individual and official capacities and within the scope of their employment. Said acts by the defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

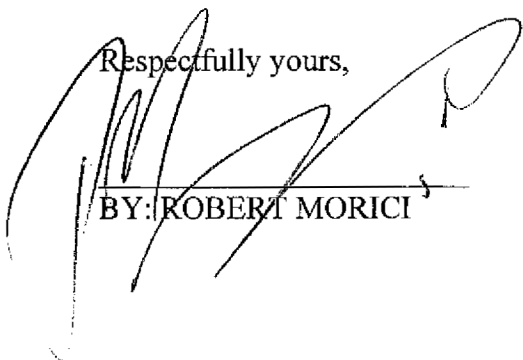
58. Defendant CITY OF NEW YORK knew that the pattern of excessive use of force, and false arrest and imprisonment described above existed in the NYPD prior to and including the time of the offense herein complained of. Defendant CITY OF NEW YORK's failure to take measures to curb this pattern of behavior constitutes acquiescence in the known unlawful behavior of their subordinates. The prevalence of these practices and general knowledge of their existence at the time of the occurrence(s) which form the basis of Plaintiff's complaint. The CITY OF NEW YORK's conduct has been a substantial factor in the continuation of such unlawful behavior and a proximate cause of the constitutional violations alleged in this complaint.

WHEREFORE, Plaintiff demands judgment against the defendants in a sum in excess of the jurisdictional limits of the lower Courts of the State of New York, that would otherwise have jurisdiction over this matter together with the costs and disbursements of this action.

Dated: Garden City, New York

January 17, 2022

Respectfully yours,


BY: ROBERT MORICI

MORICI & MORICI, LLP
Attorneys for Plaintiff
DESMOND HUGHLETT
1399 Franklin Avenue, Suite 202
Garden City, NY 11530
(516) 873-1902

ATTORNEY VERIFICATION

ROBERT MORICI, an attorney duly licensed to practice law in the Courts of the state of New York, affirms the following under the penalty of perjury:

That I am an associate of the law firm **MORICI & MORICI, LLP**, in this action, that I have read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to the knowledge of affirmation except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe it to be true.

That the reason why this verification is made by affirmation and not by Plaintiff is that the plaintiff does not reside in the County of Nassau where your affirmant has his office. That the sources of your affirmant's information and the grounds of my belief as to all the matters in said **COMPLAINT** alleged upon information and belief are reports from and communications had with the plaintiff.

DATED: Garden City, New York
January 17, 2022


ROBERT MORICI